

WELLS FARGO BANK NA

v

JONES

19CF13112

DEFENDANT'S MOTION TO DISMISS

Defendant Anthony Jones moves for an order dismissing this action.

Moving party has failed to comply with Local Rule 3.3.7, enacted January 1, 2018, in that the Notice of Motion does not include the mandatory language regarding the Court's tentative ruling system. Pursuant to said local rule, lack of compliance provides a specific ground to deny any such procedurally-deficient motion. Based solely upon moving party's failure to comply with Local Rule 3.3.7, the motion is DENIED, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes. However, the Court additionally notes that all authorities cited by Defendant are to the Federal Rules of Civil Procedure, the Federal Rules of Evidence, and/or federal appellate cases, none of which are applicable to a state court proceeding such as this; even had defendant complied with the procedural local rule, the motion would be denied on this substantive basis.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal order is required.